

COUNTY OF KINGS

-----X
MARK WARD and DWIGHT PRIESTLEY,

Plaintiffs,

- against -

THE CITY OF NEW YORK, P.O. ALI SALEM
and JOHN DOES "1-3", The names being
fictitious and identity unknown,Defendants.
-----X

Index No.

Plaintiff designates
Kings County as
place of trial.The basis of the
venue is the
location of occurrence.**S U M M O N S**

Plaintiffs resides at:

MARK WARD208 Parkside Ave., #1
Brooklyn, NY 11226

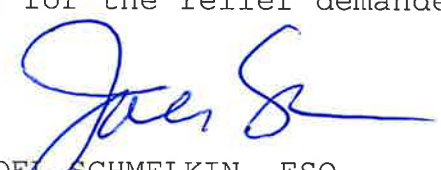
County of Kings

DWIGHT PRIESTLEY208 Parkside Ave., #1
Brooklyn, NY 11226

To the above named defendant(s):

County of Kings

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: Mineola, New York
May 29, 2024
JOEL SCHMELKIN, ESQ.
SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiffs
MARK WARD and
DWIGHT PRIESTLEY
Office & P.O. Address
344 Willis Avenue
Mineola, New York 11501
(212) 227-8865/516-696-8865THE CITY OF NEW YORK, 100 Church Street, New York, N.Y. 10007P.O. ALI SALEM, c/o: 70th Precinct, 154 Lawrence Avenue, Brooklyn, NY 11230

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MARK WARD and DWIGHT PRIESTLEY,

Index No.

Plaintiffs,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. ALI SALEM,
and JOHN DOES "1-3", The names being
fictitious and identity unknown,

Defendants.

-----X

Plaintiffs, complaining of the defendants, by their
attorneys, SCHMELKIN ASSOCIATES, P.C., hereby sets forth and
alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT ON BEHALF
OF PLAINTIFF MARK WARD

1. That, at all times hereinafter mentioned, and on
September 13, 2023, the plaintiff, **MARK WARD**, was and still is a
resident of the County of Kings, City and State of New York.

2. That, at all times hereinafter mentioned, and on
September 13, 2023, the defendant, **THE CITY OF NEW YORK**,
(hereinafter referred to as "**THE CITY**") was and still is a domestic
municipal corporation, duly organized and existing under and by
virtue of the laws of the State of New York.

3. That, at all times hereinafter mentioned, and on
September 13, 2023, the defendant, **P.O. ALI SALEM**, (hereinafter
referred to as "**SALEM**"), was and still is a resident of the City and
State of New York.

4. That, at all times hereinafter mentioned, and on September 13, 2023, the defendant, **"JOHN DOES 1-3", the names being fictitious and identity unknown**, (hereinafter referred to as **"DOES"**), were and still are a resident of the City and State of New York.

5. That, the Plaintiff, **MARK WARD**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on November 16, 2023, within ninety (90) days of the date that the within causes of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **MARK WARD**, testified at an oral examination pursuant to the General Municipal Law on March 29, 2024; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

6. That, at all times hereinafter mentioned and on September 13, 2023, the plaintiff, **MARK WARD**, had left his employment at 208 Parkside Ave., Brooklyn, in the County of Kings, City and State of New York, and approached his motor vehicle, which was parked in front of the aforementioned premises.

7. That, he got into his motor vehicle, and was talking to his friend, Co-Plaintiff, **DWIGHT PRIESTLEY**, who was standing outside the passenger side window.

8. That, without reasonable cause, without probable cause and without justification, the defendants, their agents, servants, and/or employees, and police officers approach the vehicle of Plaintiff, **MARK WARD**.

9. That two police officers, and or other agents, servants, and employees of the defendant, had approached the passenger side of the vehicle to speak with the Co-Plaintiff, **DWIGHT PRIESTLEY**.

10. That, another defendant and/or defendants had approached the driver's side of the vehicle and were speaking to the plaintiff **MARK WARD**.

11. That, the Plaintiff, **MARK WARD**, was ordered to produce his license and registration, and he had promptly complied and gave it to the police officers.

12. That, the Plaintiff, **MARK WARD**, witnessed his friend, Co-Plaintiff, **DWIGHT PRIESTLEY**, being assaulted by the police, when the Co-Plaintiff, **DWIGHT PRIESTLEY** had inquired of the defendants why the Plaintiff, **MARK WARD** was being stopped.

13. That the Plaintiff, **MARK WARD** stated that the defendant and/or defendants, should not be pushing and or punching, and or assaulting the Co-Plaintiff, **DWIGHT PRIESTLEY**.

14. The Plaintiff, **MARK WARD**, was ordered out of his vehicle, and was handcuffed, and arrested, and held against his will, by the defendants, their agents, servants, and/or employees.

15. The Plaintiff, **MARK WARD**, was thereafter taken to the 70th precinct, by the defendants, their agents, servants, and employees, and taken against his will without probable cause, without reason cause and without justification, and he was cognizant of this at all time.

16. That, without probable cause, without reasonable cause and without justification, the plaintiff, **MARK WARD**, was handcuffed and searched, without his consent.

17. That, the Plaintiff, **MARK WARD**, was taken by the aforementioned police officers, agents, service, and the employees of the defendant, **THE CITY**, to the 70th Precinct, against his will and at all times was cognizant of that fact.

18. That, the Plaintiff, **MARK WARD**, was placed in a cell at the aforementioned police precinct, for a long and unreasonable period of time, whereby he was handcuffed, processed and given two (2) desk appearance tickets for tinted windows and disorderly conduct.

19. That, all charges against the plaintiff, **MARK WARD** were resolved in his favor.

20. That as a result of the foregoing, the Plaintiff, **MARK WARD**, was injured; was rendered sick, sore, lame and

disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief his injuries are permanent in nature and effect.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MARK WARD
(Assault and Battery)

21. That, the plaintiff, **MARK WARD**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 20 with the same force and effect as if hereinafter more fully set forth at length herein.

22. That, on September 13, 2023, the plaintiff, **MARK WARD** was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

23. That, the plaintiff, **MARK WARD**, was assaulted/battered without justification and without cause and without excuse.

24. That, the assault/battery took place at the 70th Precinct located 154 Lawrence Avenue, County of Kings, City and State of New York and other locations wherein the plaintiff, **MARK WARD** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

25. That, at all times hereinafter mentioned and on September 13, 2023, and for sometime prior thereto, defendant, **SALEM**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of

his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

26. That, at all times hereinafter mentioned and on September 13, 2023, and for sometime prior thereto, defendant, **DOES**, were New York City police officers, and/or agents, servants and/or employees of **THE CITY**, working in the scope and course of their employment as New York City Police Officers, and were employed by the defendant, **THE CITY**.

27. That, the aforementioned assault and battery of the plaintiff, **MARK WARD**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

28. That, by reason of the foregoing, the plaintiff, **MARK WARD**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

29. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

30. That, by reason of the foregoing, the plaintiff, **MARK WARD**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

ON BEHALF OF PLAINTIFF MARK WARD

(Negligent Hiring, Negligent
Training, Negligent
Retention and
Negligent Supervision)

31. That, the plaintiff, **MARK WARD**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 30 with the same force and effect as if hereinafter more fully set forth at length herein.

32. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

33. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

34. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **SALEM**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

35. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **DOES** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

36. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **SALEM**, who was employed by the defendant, **THE CITY**.

37. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **DOES**, who was employed by the defendant,

THE CITY.

38. That, by reason of the foregoing, the plaintiff, **MARK WARD**, was injured; was rendered sick, sore, lame and disabled; will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

39. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

40. That, by reason of the foregoing, the plaintiff, **MARK WARD** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MARK WARD

(False Arrest and
False Imprisonment)

41. That, the plaintiff, **MARK WARD** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 40 with the same force and effect as if hereinafter more fully set forth at length herein.

42. That, on September 13, 2023, the plaintiff, **MARK**

WARD, was caused to be falsely arrested and falsely imprisoned without probable cause.

43. That, the plaintiff, **MARK WARD**, was arrested without an arrest warrant.

44. That, the false arrest/false imprisonment took place at the 70th Precinct, 154 Lawrence Avenue, in the County of Kings, City and State of New York and thereafter continuing at other locations wherein the plaintiff, **MARK WARD** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

45. That, the aforementioned false arrest and false imprisonment of the plaintiff, **MARK WARD**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

46. That, the aforementioned false arrest and false imprisonment of the plaintiff, **MARK WARD**, was carried out by defendant, **SALEM**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

47. That, the aforementioned false arrest and false imprisonment of the plaintiff, **MARK WARD**, was carried out by defendant, **DOES** and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course

of the employment with the defendant **THE CITY**.

48. That, by reason of the foregoing, the plaintiff, **MARK WARD**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

49. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

50. That, by reason of the foregoing, the plaintiff, **MARK WARD**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MARK WARD
(Violation of Fourth, Fifth and
Fourteenth Amendment Rights)

51. The plaintiff, **MARK WARD**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 50, with the same force and effect as if hereinafter more fully set forth at length herein.

52. That the plaintiff, **MARK WARD** did not commit

any illegal act, nor did the individually named defendants have reason to believe he committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him; maliciously prosecuted and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

53. That at all times hereinafter mentioned, the defendant, **SALEM** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

54. That at all times hereinafter mentioned, the defendant, **DOES** were employed in their respective capacity by the defendant, **THE CITY** and was acting under the color of their official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

55. Defendant, **SALEM**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **SALEM** knew or should have known of the fact that this

pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

56. Defendants, **DOES**, are being sued in their personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants, **DOES** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

57. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **MARK WARD** of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff, **MARK WARD** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to

the Constitution of the United States; the right of plaintiff, **MARK WARD**, to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **MARK WARD**, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

58. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant while acting under color of state law and within the scope of his employ.

59. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

60. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

61. That the deprivation of plaintiff, **MARK WARD's** Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

62. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions

that have been brought against the defendant, **THE CITY**.

63. That, the detaining of plaintiff, **MARK WARD** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

64. That, the deprivation of plaintiff, **MARK WARD's** Constitutional rights was the result of the defendant, **SALEM's** arrest of the plaintiff **MARK WARD** without probable cause.

65. That, the deprivation of plaintiff, **MARK WARD's** Constitutional rights was the result of the defendant, **DOES's** arrest of the plaintiff **MARK WARD** without probable cause.

66. That, the deprivation of plaintiff **MARK WARD's** Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive force.

67. That, the deprivation of plaintiff, **MARK WARD's** Constitutional rights was the result of the defendant, **SALEM's** use of excessive force.

68. That, the deprivation of plaintiff, **MARK WARD's** Constitutional rights was the result of the defendant, **DOES** use of excessive force.

69. That, the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **MARK WARD**.

70. That, by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, malicious prosecution due to the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **MARK WARD** was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

71. That, by reason of the foregoing, the plaintiff, **MARK WARD** was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

72. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

73. That, by reason of the foregoing, the plaintiff, **MARK WARD**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of

New York.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MARK WARD

(Negligent Infliction
of Emotional Distress)

74. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, **MARK WARD**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

76. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

77. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**,

which are therefore responsible for their conduct.

79. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

80. That, by reason of the foregoing, the plaintiff, **MARK WARD**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

81. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

82. That, by reason of the foregoing, the plaintiff, **MARK WARD**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MARK WARD
(Intentional Infliction
of Emotional Distress)

83. That the plaintiff, **MARK WARD**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 82 with the same force and effect as if

hereinafter more fully set forth at length herein.

84. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotional distress to plaintiff, **MARK WARD**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

85. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

86. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

88. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

89. That, by reason of the foregoing, the plaintiff, **MARK WARD**, was injured; was rendered sick, sore, lame and

disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

90. That, this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

91. That, by reason of the foregoing, the plaintiff, **MARK WARD**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR AN SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MARK WARD
(Failure to Intervene)

92. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 91 with the same force and effect as if more fully set forth at length herein.

93. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of the plaintiff, whose constitutional rights were being violated in their presence by other officers.

94. Defendants failed to intervene to prevent the unlawful conduct described herein.

95. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

96. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

97. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

98. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

99. That, by reason of the foregoing, the plaintiff, **MARK WARD**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

100. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as

well as having performed intentional acts.

101. As a result of the aforementioned conduct of defendants, plaintiff sustained personal injuries, including but not limited to emotional and psychological injuries.

102. That, by reason of the foregoing, the plaintiff, **MARK WARD**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

**PRELIMINARY STATEMENT ON BEHALF
OF PLAINTIFF DWIGHT PRIESTLEY**

103. That, the Plaintiff, **DWIGHT PRIESTLEY**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 102 with the same force and effect as if hereinafter more fully set forth at length herein.

104. That, at all times hereinafter mentioned, and on September 13, 2023, the Co-Plaintiff, **DWIGHT PRIESTLEY**, was and still is a resident of the County of Kings, City and State of New York.

105. That, at all times hereinafter mentioned, and on September 13, 2023, the defendant, **THE CITY OF NEW YORK**, (hereinafter referred to as "**THE CITY**") was and still is a domestic municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

106. That, at all times hereinafter mentioned, and on September 13, 2023, the defendant, **P.O. ALI SALEM**, (hereinafter referred to as "**SALEM**"), was and still is a resident of the City

and State of New York.

107. That, at all times hereinafter mentioned, and on September 13, 2023, the defendant, **"JOHN DOES 1-3", the names being fictitious and identity unknown**, (hereinafter referred to as **"DOES"**), were and still are a resident of the City and State of New York.

108. That, the plaintiff, **DWIGHT PRIESTLEY**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; Plaintiff's Notice of Claim was served on November 16, 2023, within ninety (90) days of the date that the within causes of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the Co-Plaintiff, **DWIGHT PRIESTLEY**, testified at an oral examination pursuant to the General Municipal Law on April 1, 2024; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

109. That at all times hereinafter mentioned, and on September 13, 2023, the Co-Plaintiff, **DWIGHT PRIESTLEY**, was standing outside 208 Parkside Avenue, in the County of King, City and State of New York.

110. That, the Co-Plaintiff, **DWIGHT PRIESTLEY**, was speaking to his friend, Plaintiff, **MARK WARD**, who is sitting in a

motor vehicle, parked at the aforementioned location.

111. That, without probable cause, without reasonable cause and without any basis whatsoever, Police officers and/or defendants pulled alongside of the motor vehicle, and in the vicinity of the Co-plaintiff, **DWIGHT PRIESTLEY**.

112. That a police officer, and other agents, servants, and employees of the defendant and/or defendants, approached to plaintiff **DWIGHT PRIESTLEY**, and asked him to move.

113. That, the Plaintiff, **DWIGHT PRIESTLEY**, had, in fact moved, and the defendant, police officers, and or other agents, servants, and employees of the defendants, had pulled the arm of the Plaintiff, **DWIGHT PRIESTLEY**, and otherwise assaulted and used excessive force on him for no reason.

114. Thereafter, the Co-Plaintiff, **DWIGHT PRIESTLEY**, was punched in the face and handcuffed by the defendants, their agents, servants, and/or employees.

115. That, the Co-Plaintiff, **DWIGHT PRIESTLEY**, while handcuff, was taken to the 70th precinct, where he was processed, and held for a long and unreasonable period of time.

116. The Co-Plaintiff, **DWIGHT PRIESTLEY**, was thereafter taken to Central Booking by the defendants, agents, servants, and/or employees.

117. That at all times, the Co-Plaintiff, **DWIGHT PRIESTLEY**, was held, against his will, and was cognizant of this

fact, by the defendants, their agents, servants, and/or employees, which at all times was done without probable caused, without reasonable causes, and without justification.

118. That, the Co-Plaintiff, **DWIGHT PRIESTLY**, was injured as a result of the conduct of the defendants, their agents, servants, and/or employees herein.

119. That, all charges against the Co-Plaintiff, **DWIGHT PRIESTLEY** were adjourned in contemplation of dismissal.

120. That as a result of the foregoing, the Co-plaintiff **DWIGHT PRIESTLEY** was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief his injuries are permanent in nature and effect unlawful conduct described herein.

AS AND FOR A EIGHTH CAUSE OF ACTION
ON BEHALF OF CO-PLAINTIFF DWIGHT PRIESTLEY
(Assault and Battery)

121. That, the Co-Plaintiff, **DWIGHT PRIESTLEY**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 120 with the same force and effect as if hereinafter more fully set forth at length herein.

122. That, on September 13, 2023, the Co-Plaintiff, **DWIGHT PRIESTLEY** was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

123. That, the Co-Plaintiff, **DWIGHT PRIESTLEY**, was assaulted/battered without justification and without cause and

without excuse.

124. That, the assaulted/battery took place at the 70th Precinct, 154 Lawrence Avenue, County of Kings, City and State of New York and other locations wherein the Co-Plaintiff, **DWIGHT PRIESTLEY** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

125. That, at all times hereinafter mentioned and on September 13, 2023, and for sometime prior thereto, defendant, **SALEM**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

126. That, at all times hereinafter mentioned and on September 13, 2023, and for sometime prior thereto, defendant, **DOES**, were New York City police officers, and/or agents, servants and/or employees of **THE CITY**, working in the scope and course of their employment as New York City Police Officers, and were employed by the defendant, **THE CITY**.

127. That, the aforementioned assault and battery of the plaintiff, **DWIGHT PRIESTLEY**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

128. That, by reason of the foregoing, the Co-Plaintiff, **DWIGHT PRIESTLEY**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

129. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

130. That, by reason of the foregoing, the plaintiff, **DWIGHT PRIESTLEY**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A NINTH CAUSE OF ACTION
ON BEHALF OF CO-PLAINTIFF DWIGHT PRIESTLEY
(Negligent Hiring, Negligent
Training, Negligent
Retention and
Negligent Supervision)

131. That, the plaintiff, **DWIGHT PRIESTLEY**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 130 with the same force and effect as if hereinafter more fully set forth at length herein.

132. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the

defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

133. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

134. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **SALEM**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

135. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **DOES** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

136. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but

not limited to defendant, **SALEM**, who was employed by the defendant, **THE CITY**.

137. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **DOES**, who was employed by the defendant, **THE CITY**.

138. That, by reason of the foregoing, the Co-Plaintiff, **DWIGHT PRIESTLEY**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

139. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

140. That, by reason of the foregoing, the Co-Plaintiff, **DWIGHT PRIESTLEY**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A TENTH CAUSE OF ACTION
ON BEHALF OF CO-PLAINTIFF DWIGHT PRIESTLEY
(False Arrest and
False Imprisonment)

141. That, the plaintiff, **DWIGHT PRIESTLEY**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 140 with the same force and effect as if hereinafter more fully set forth at length herein.

142. That, on September 13, 2023, the Co-Plaintiff, **DWIGHT PRIESTLEY**, was caused to be falsely arrested and falsely imprisoned without probable cause.

143. That, the Co-Plaintiff, **DWIGHT PRIESTLEY**, was arrested without an arrest warrant.

144. That, the false arrest/false imprisonment took place at the 70th Precinct located at 154 Lawrence Avenue, in the County of Kings, City and State of New York and thereafter continuing at other locations wherein the Co-Plaintiff, **DWIGHT PRIESTLEY** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

145. That, the aforementioned false arrest and false imprisonment of the Co-Plaintiff, **DWIGHT PRIESTLEY**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

146. That, the aforementioned false arrest and false imprisonment of the Co-Plaintiff, **DWIGHT PRIESTLEY**, was carried

out by defendant, **SALEM**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

147. That, the aforementioned false arrest and false imprisonment of the Co-Plaintiff, **DWIGHT PRIESTLEY**, was carried out by defendant, **DOES** and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

148. That, by reason of the foregoing, the Co-Plaintiff, **DWIGHT PRIESTLEY**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

149. That, this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendants and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

150. That, by reason of the foregoing, the Co-Plaintiff, **DWIGHT PRIESTLEY**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A ELEVENTH CAUSE OF ACTION
ON BEHALF OF CO-PLAINTIFF DWIGHT PRIESTLEY

(Violation of Fourth, Fifth and
Fourteenth Amendment Rights)

151. The Co-Plaintiff, **DWIGHT PRIESTLEY**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 150 with the same force and effect as if hereinafter more fully set forth at length herein.

152. That, the CO-Plaintiff, **DWIGHT PRIESTLEY** did not commit any illegal act, nor did the individually named defendants have reason to believe he committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against her; maliciously prosecuted and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

153. That, at all times hereinafter mentioned, the defendant, **SALEM** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

154. That, at all times hereinafter mentioned, the defendant, **DOES** were employed in their respective capacity by the defendant, **THE CITY** and was acting under the color of their official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

155. Defendant, **SALEM**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **SALEM** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

156. Defendants, **DOES**, are being sued in their personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants, **DOES** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

157. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived Co-Plaintiff, **DWIGHT PRIESTLEY**, of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of Co-Plaintiff, **DWIGHT PRIESTLEY**, to be secure in her person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of CO-Plaintiff, **DWIGHT PRIESTLEY**, to be informed of the nature and cause of the accusation against his as secured to his under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of Co-Plaintiff, **DWIGHT PRIESTLEY**, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

158. That, the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant while acting under color of state law and within the scope of his employ.

159. That, the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

160. That, the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

161. That, the deprivation of CO-Plaintiff, **DWIGHT PRIESTLEY's**, Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

162. That, the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

163. That, the detaining of Co-Plaintiff, **DWIGHT PRIESTLEY**, without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

164. That, the deprivation of Co-Plaintiff, **DWIGHT PRIESTLEY's** Constitutional rights was the result of the defendant, **SALEM's** arrest of the Co-Plaintiff **DWIGHT PRIESTLEY**, without probable cause.

165. That, the deprivation of Co-Plaintiff, **DWIGHT PRIESTLEY's** Constitutional rights was the result of the defendant, **DOES's** arrest of the plaintiff **DWIGHT PRIESTLEY** without probable cause.

166. That, the deprivation of Co-Plaintiff **DWIGHT PRIESTLEY's** Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive force.

167. That, the deprivation of Co-Plaintiff, **DWIGHT PRIESTLEY's** Constitutional rights was the result of the defendant, **SALEM's** use of excessive force.

168. That, the deprivation of Co-Plaintiff, **DWIGHT PRIESTLEY's** Constitutional rights was the result of the defendant, **DOES** use of excessive force.

169. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of Co-Plaintiff, **DWIGHT PRIESTLEY**.

170. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the Co-Plaintiff's false arrest, false imprisonment, assault and battery, malicious prosecution due to the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the Co-Plaintiff, **DWIGHT PRIESTLEY** was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

171. That, by reason of the foregoing, the Co-Plaintiff, **DWIGHT PRIESTLEY**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and

advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

172. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

173. That, by reason of the foregoing, the Co-Plaintiff, **DWIGHT PRIESTLEY**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A TWELFTH CAUSE OF ACTION
ON BEHALF OF CO-PLAINTIFF DWIGHT PRIESTLEY

(Negligent Infliction
of Emotional Distress)

174. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 177 with the same force and effect as if more fully set forth at length herein.

175. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Co-Plaintiff, **DWIGHT PRIESTLEY**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Co-Plaintiff and violated Co-Plaintiff's statutory and

common law rights as guaranteed by the laws and Constitution of the State of New York.

176. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

177. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

178. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

179. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

180. That, by reason of the foregoing, the Co-Plaintiff, **DWIGHT PRIESTLEY**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

181. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants,

having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

182. That, by reason of the foregoing, the plaintiff, **DWIGHT PRIESTLEY**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
ON BEHALF OF CO-PLAINTIFF DWIGHT PRIESTLEY

(Intentional Infliction
of Emotional Distress)

183. That the plaintiff, **DWIGHT PRIESTLEY**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 182 with the same force and effect as if hereinafter more fully set forth at length herein.

184. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotional distress to Co-Plaintiff, **DWIGHT PRIESTLEY**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

185. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and

violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

186. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

187. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

188. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

189. That, by reason of the foregoing, the Co-Plaintiff, **DWIGHT PRIESTLEY**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

190. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

191. That, by reason of the foregoing, the Co-Plaintiff, **DWIGHT PRIESTLEY**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR AN FOURTEENTH CAUSE OF ACTION
ON BEHALF OF CO-PLAINTIFF DWIGHT PRIESTLEY
(Failure to Intervene)

192. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 191 with the same force and effect as if more fully set forth at length herein.

193. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of the plaintiff, whose constitutional rights were being violated in their presence by other officers.

194. Defendants failed to intervene to prevent the unlawful conduct described herein.

195. As a result of the foregoing, Co-Plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

196. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

197. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

198. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

199. That, by reason of the foregoing, the Co-Plaintiff, **DWIGHT PRIESTLEY**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

200. That, this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

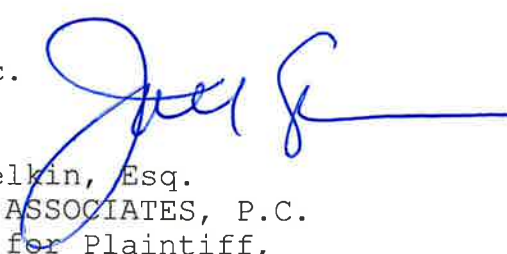
201. As a result of the aforementioned conduct of defendants, plaintiff sustained personal injuries, including but not limited to emotional and psychological injuries.

202. That, by reason of the foregoing, the Co-Plaintiff, **DWIGHT PRIESTLEY**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, Plaintiff, **MARK WARD**, demands judgment against the defendants, on the First, Second, Third, Fourth, Fifth, Sixth and Seventh causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York as well as the costs, disbursement and legal fees pursuant to 42 U.S.C. Section 1988 of these causes of action; and Co-Plaintiff, **DWIGHT PRIESTLEY** demands judgment against the defendants, on the Eighth, Ninth, Tenth, Eleventh, Twelfth, Thirteenth and Fourteenth causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: Mineola, New York
May 29, 2024

Yours, etc.



Joel Schmelkin, Esq.
SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff,
MARK WARD and
DWIGHT PRIESTLEY
Office & P.O. Address
344 Willis Avenue
Mineola, New York 11501
(212) 227-8865/516-696-8865

ATTORNEY'S VERIFICATION

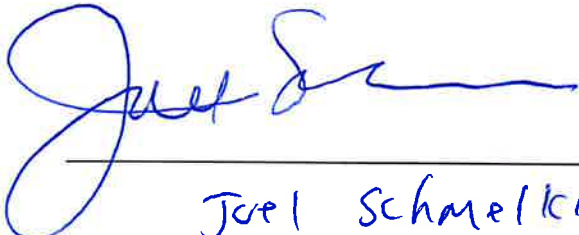
STATE OF NEW YORK)
) ss.:
COUNTY OF NASSAU)

Joel Schmelkin, an attorney admitted to practice law in the State of New York, states, the following:

I am a member of the law firm of Schmelkin Associates, P.C., the attorneys of record for the plaintiff in the within action. I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe it to be true. This verification is made by me and not by the plaintiff because the plaintiff does not reside in the County where Schmelkin Associates, P.C. maintains its office.

The grounds of my belief as to all matters not stated upon my knowledge are conversations with plaintiff and contents of the file maintained by Schmelkin Associates, P.C.

Dated: Mineola, New York
May 29, 2024



Joel Schmelkin

45

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Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

MARK WARD and DWIGHT PRIESTLEY,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. ALI SALEM and JOHN DOES "1-3", THE NAMES BEING
FICTITIOUS and IDENTITY UNKOWN,

Defendants

VERIFIED COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

Mark Ward and Dwight Priestley
Office and Post Office Address, Telephone
344 WILLIS AVENUE
MINEOLA, NY 11501
(212) 227-8865
(516) 696-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: MAY 29, 2024

Signature

Print Signer's Name JOEL SCHMELKIN

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

☐ that the within is a (certified) true copy of a
NOTICE OF ENTRY entered in the office of the clerk of the within-named Court on 20

☐ that an Order of which the within is a true copy will be presented for settlement to the
NOTICE OF SETTLEMENT Hon. , one of the judges of the within-named Court,
at
on 20 , at M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

Office and Post Office Address, Telephone
344 WILLIS AVENUE
MINEOLA, NY 11501
(212) 227-8865
(516) 696-8865

Attorney(s) for